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DEFENDANTS' DEMURRER TO AND MOTION TO STRIKE PORTIONS OF FIRST AMENDED COMPLAINT

Motions filed on June 9, 2026.

MOVING PARTIES: Defendants Canoga Healthcare LLC dba West Hills Health and Rehabilitation Center, David Friedman, and Joshua Klavan

RESPONDING PARTY: Plaintiff Parvin Akbari

NOTICE: OK

RELIEF REQUESTED: Defendants demur to the First Amended Complaint for failure to state sufficient facts and uncertainty. Defendants also move to strike Plaintiff's requests for punitive damages, treble damages, and attorney's fees.

RULING: Demurrer is overruled. Motion to strike is denied.

BACKGROUND

On December 31, 2025, Parvin Akbari, individually and as successor in interest to Kevian Pejman (Plaintiff), filed the Complaint arising from the care provided to Kevian Pejman (Decedent) while she resided at West Hills Health and Rehabilitation Center.

On March 12, 2026, Plaintiff filed the First Amended Complaint (FAC) alleging causes of action for elder abuse, medical negligence, and wrongful death against Canoga Healthcare LLC dba West Hills Health and Rehabilitation Center (Defendant

Facility), David Friedman (Defendant Friedman), and Joshua Klavan (Defendant Klavan), among others.

On June 9, 2026, Defendant Facility, Defendant Friedman, and Defendant Klavan (collectively, Defendants) filed the instant demurrer and motion to strike. Plaintiff filed oppositions on August 3, 2026. Defendants filed replies on August 6, 2026.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the Court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 967.)

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).) "The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Id., § 436.)

DEMURRER

First Cause of Action: Elder Abuse

To state a claim for elder neglect, Plaintiff must allege that the defendant had responsibility for meeting the elder's basic needs, knew the elder could not meet those needs, denied or withheld necessary goods or services with the required culpable mental state, and thereby caused physical harm, pain, or mental suffering. The facts constituting the neglect and establishing its causal connection to the injury must be pleaded with particularity. (Carter v. Prime Healthcare Paradise Valley LLC (2011) 198 Cal.App.4th 396, 406-407.)

Here, Plaintiff alleges that Decedent was in the care and custody of each Defendant. (FAC ¶ 49.) Plaintiff alleges that Defendant Facility was responsible for meeting Decedent's basic needs, including nutrition, hydration, hygiene, and medical care. (FAC ¶ 21.) Plaintiff further alleges that Defendants' required care and supervision included custodial care, skilled nursing services, and dietary services. (FAC ¶ 22.) As to knowledge, Plaintiff alleges that each Defendant knew Decedent's physical condition rendered her unable to provide for her own basic needs. (FAC ¶ 23.) As to the withholding of necessary care, Plaintiff alleges that Defendants declined to provide appropriate skin assessments, infection-control practices, fall-prevention assessments and devices, pressure-ulcer prevention measures, and adequate nutrition. (FAC ¶¶ 54-57.) As to the required mental state, Plaintiff alleges that each Defendant conceived and implemented a plan to reduce labor costs by understaffing Defendant Facility. (FAC ¶ 19.) Plaintiff alleges that each Defendant deliberately maintained staffing levels that prevented employees from providing necessary care and created a high probability of injury. (FAC ¶ 58.) Plaintiff identifies the staffing regulation allegedly violated and alleges a custom and practice of violating it. (FAC ¶ 52.) Plaintiff alleges that the resulting deprivation of care caused Decedent to suffer pressure ulcers, infections, a head injury, and death. (FAC ¶ 60.) Unlike the allegations found insufficient in Carter, these allegations do not merely describe deficient medical treatment. They allege the knowing withholding of specified custodial care through a cost-driven practice of violating staffing requirements. Such allegations are sufficient at the pleading stage (Fenimore v. Regents of University of California (2016) 245 Cal.App.4th 1339, 1348-1350.)

As to Defendant Friedman and Defendant Klavan, Defendants assert that the FAC does not identify any act or decision by either individual. Paragraph 19 alleges that Defendants, "and each of them," conceived and implemented the challenged understaffing plan. Paragraph 58 alleges that Defendants, "and each of them," deliberately maintained staffing levels that prevented employees from providing necessary care. These allegations identify the challenged decisions and attribute them to each individual Defendant rather than relying solely on the allegation of vicarious liability in paragraph 30. Welfare and

Institutions Code section 15657, subdivision (c), and Civil Code section 3294, subdivision (b), govern the imposition of enhanced remedies against an employer based on employee conduct. They do not defeat the elder-neglect claim against individual Defendants alleged to have participated in the challenged conduct. The sufficiency of the enhanced-remedy allegations is addressed below.

The demurrer to the first cause of action is overruled.

Second Cause of Action: Medical Negligence

Professional negligence requires duty, breach, causation, and damages. (*Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1077.) Whether the alleged conduct is characterized as ordinary or professional negligence does not change the essential negligence standard under a given set of facts. (*Flowers v. Torrance Memorial Hospital Medical Center* (1994) 8 Cal.4th 992, 1000.) A general demurrer must be overruled when the pleaded facts state a valid claim under any legal theory. (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38-39.)

Here, the second cause of action incorporates the preceding allegations. (FAC ¶ 64.) Plaintiff alleges that Defendant Friedman and Defendant Klavan each owned, operated, and managed Defendant Facility. (FAC ¶¶ 7-8.) Plaintiff alleges that each Defendant owed a duty to protect Decedent's health and safety. (FAC ¶ 51.) Although corporate status alone does not create personal liability, an individual may be liable for wrongful conduct the individual authorizes, directs, or actively participates in. (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-504.) Plaintiff alleges that Defendant Friedman and Defendant Klavan each conceived and implemented the challenged understaffing plan. (FAC ¶ 19.) Plaintiff further alleges that each deliberately maintained staffing levels that prevented employees from properly caring for Decedent and implementing infection-control measures. (FAC ¶ 58.) Plaintiff alleges that the resulting deprivation of care caused Decedent's pressure ulcers, infection, head injury, and death. (FAC ¶¶ 60, 70.) Plaintiff also alleges resulting personal injuries, medical expenses, and incidental expenses. (FAC ¶ 71.) These allegations are sufficient to state a negligence claim against each individual Defendant.

The demurrer to the second cause of action as to Defendant Friedman and Defendant Klavan is overruled.

Third Cause of Action: Wrongful Death

A wrongful-death claim requires an underlying wrongful act or neglect, resulting death, and damages suffered by the decedent's heirs. (*Quiroz v. Seventh Avenue Center* (2006) 140 Cal.App.4th 1256, 1263.)

Here, Plaintiff alleges that Defendant Friedman and Defendant Klavan each conceived and implemented the challenged understaffing plan. (FAC ¶ 19.) Plaintiff further alleges that each deliberately maintained staffing levels that prevented necessary care from being provided to Decedent. (FAC ¶ 58.) Plaintiff alleges that the resulting pressure ulcers, infection, fall, and head injury caused Decedent's death. (FAC ¶ 78.) Plaintiff alleges that she is Decedent's daughter and suffered economic and noneconomic losses from her mother's death. (FAC ¶¶ 79-82.) Plaintiff further alleges that Defendants' acts and omissions were substantial factors in causing the death and resulting damages. (FAC ¶ 83.) These allegations are sufficient to state a wrongful-death claim.

The demurrer to the third cause of action as to Defendant Friedman and Defendant Klavan is overruled.

Uncertainty

A demurrer for uncertainty is sustained only when the pleading is so incomprehensible that the defendant cannot reasonably determine what issues must be admitted or denied. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Here, the FAC identifies Defendant Friedman and Defendant Klavan as owners, operators, and managers of Defendant Facility. (FAC ¶¶ 7-8.) It alleges that they participated in the challenged staffing decisions and identifies the care allegedly withheld, the resulting injuries, and the asserted connection to Decedent's death. (FAC ¶¶ 19, 33-42, 54-60.) Defendants can reasonably determine what they must answer.

The demurrer for uncertainty is overruled.

MOTION TO STRIKE

Defendants move to strike paragraph 63 of the FAC, which seeks punitive damages under Civil Code section 3294 and trebling under Civil Code section 3345, paragraph 4 of the prayer for punitive damages, and paragraph 5 of the prayer for attorney's fees.

Punitive damages require allegations supporting oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Malice includes despicable conduct carried on with a willful and conscious disregard of another's rights or safety. (Id., subd. (c)(1).) Before enhanced damages or attorney's fees may be imposed against an employer based on employee conduct, Welfare and Institutions Code section 15657, subdivision (c), requires satisfaction of Civil Code section 3294, subdivision (b).

Here, Plaintiff alleges that each Defendant conceived and implemented a deliberate plan to understaff Defendant Facility to reduce labor costs and increase profits. (FAC ¶ 19.) Plaintiff alleges that Defendants deliberately maintained staffing levels that prevented necessary care from being provided and consciously disregarded the high probability of injury to Decedent. (FAC ¶ 58.) Plaintiff further alleges that management knowingly provided less care than represented in billing records and that all Defendants ratified those decisions. (FAC ¶ 59.) These allegations sufficiently support an inference of despicable conduct undertaken in willful and conscious disregard of Decedent's safety. As to Defendant Friedman and Defendant Klavan, the allegations rest on their alleged participation in the challenged staffing decisions, rather than solely on their ownership or management positions. (FAC ¶¶ 7-8, 19, 58.) As to Defendant Facility, Plaintiff alleges that Defendant Friedman and Defendant Klavan were its owners, operators, and managers and personally conceived and implemented the facilitywide policy. (FAC ¶¶ 7-8, 19.) These allegations sufficiently plead the required managing-agent conduct under Civil Code section 3294, subdivision (b), and Welfare and Institutions Code section 15657, subdivision (c). Because the FAC sufficiently alleges reckless elder neglect and the required employer participation, the request for attorney's fees under Welfare and Institutions Code section 15657 is also sufficiently supported.

Defendants' memorandum does not separately develop a ground for striking the request under Civil Code section 3345. In any event, section 3345 applies to actions brought on behalf of senior citizens to redress unfair or deceptive acts or practices and permits enhancement of a statutorily authorized remedy in the nature of a penalty. (Civ. Code, § 3345, subds. (a)-(b).) This action is brought on behalf of Decedent, who was older than 65. (FAC ¶ 49.) Plaintiff alleges that Defendants represented in billing records that Decedent received high levels of care while knowingly providing less care than represented. (FAC ¶ 59.) Plaintiff alleges that Defendants knew Decedent's condition rendered her unable to meet her own basic needs. (FAC ¶ 23.) Plaintiff alleges that Decedent suffered substantial physical injuries and death from Defendants' conduct. (FAC ¶ 60.) Because the FAC sufficiently alleges a statutory punitive remedy under Civil Code section 3294 and the circumstances specified in section 3345, the request for trebling is sufficiently supported.

The motion to strike is denied.

CONCLUSION

The demurrer is overruled. The motion to strike is denied. Defendants shall file and serve their answer within 10 days. Defendants shall give notice.